

**In The Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)**

PRESENT:

MR. JUSTICE MD. SHOHROWARDI
CRIMINAL APPEAL NO. 851 OF 1994

Md. Taimur Rahman

..... Appellant.

-Versus-

The State

..... Respondent.

Mr. Md. Abdul Hai Sarker, Advocate

.....For the appellant.

Mr. S.M. Golam Mostofa Tara, D.A.G with

Mr. M. Mannan, A.A.G

... For the State

Heard on 27.07.2023

Judgment delivered on: 25.07.2023

Md. Shohrowardi, J.

This appeal under section 410 of the Code of Criminal Procedure, 1898 is directed against the judgment and order dated 30.04.1994 passed by the Additional Sessions Judge, Dhaka in Session Case No. 256 of 1992 convicting the appellant under Section 19(1)(Ka) of the মাদক দ্রব্য নিয়ন্ত্রণ আইন, ১৯৯০ and sentencing him thereunder to suffer rigorous imprisonment for 05 (five) years.

The prosecution case, in short, is that on 28.05.1992 based on the secret information, Abdul Khalek, Assistant Director, Narcotics Control Directorate, Dhaka Metropolitan Area, Mirpur along with other officials went to Gabtoli and took a position at the eastern side of the traffic police box situated on the Gabtali Main Road and searching the accused Md.

Taimur Rahman in the presence of the witnesses recovered 35 grams of heroin from his right pocket of Panjabi kept in a small polythene bag. In the presence of the witnesses prepared the seizure list at the place of occurrence and sent $\frac{1}{4}$ grams of heroin for chemical examination and took custody of the recovered goods.

The informant P.W. 1 Masudul Haq took up the investigation of the case and during the investigation, recorded the statement of the witnesses under section 161 of the Code of Criminal Procedure, 1898 and received the report of the chemical examiner from P.W. 5 Chemical Examiner Abdul Wadud. After completing the investigation, found the prima facie truth of the allegation made against the accused and submitted a charge sheet against him.

During the trial, the charge was framed against the accused under section 19(1)(Ka) of the মাদক দ্রব্য নিয়ন্ত্রণ আইন, ১৯৯০ and the prosecution examined 5 witnesses to prove the charge. After examination of the prosecution witnesses, the accused was examined under section 342 of the Code of Criminal Procedure, 1898 and he declined to examine any DW. The trial court after completing the trial by impugned judgment and order convicted the accused and sentenced him as stated above against which the accused preferred this appeal.

The learned Advocate Mr. Md. Abdul Hai Sarker appearing on behalf of the appellant submits that out of the 05 years sentence passed by the trial court, the appellant has already served three years and six months in custody and after that, he obtained the bail. The prosecution could not prove that the specific amount of heroin was recovered from his possession. Therefore, the sentence passed by the trial court is too harsh and he prayed for a reduction of the sentence already undergone.

The learned Deputy Attorney General Mr S.M. Golam Mostofa Tara appearing on behalf of the state submits that P.Ws. 1, 2 and 3 are the witnesses of the recovery of 35 grams of heroin from possession of the appellant and P.W. 5 Chemical Examiner Abdul Wadud opined that he

found heroin in the alampats sent by P.W. 1 for chemical examination. The prosecution witnesses proved the charge against the appellant to the hilt beyond all reasonable doubt.

I have considered the submission of the learned Advocate Mr. Md. Abdul Hai Sarker who appeared on behalf of the appellant and the learned Deputy Attorney General who appeared on behalf of the State, perused the evidence, impugned judgment and order passed by the trial court and the records.

On perusal of the records, it appears that P.W. 1 is the informant and P.W. 2 Baby Taxi driver is the seizure list witness. P.W. 3 is the Officer of the Narcotics Control Department and in a voice, they stated that 35 grams of heroin were recovered from possession of the accused Md. Taimur Rahman. P.W. 5 Chemical Examiner Abdul Wadud deposed that he found heroin in the parcel marked as exhibit-Ka. Therefore, I am of the view that the prosecution proved that the heroin was recovered from the possession of the accused.

Now the question has arisen whether the prosecution proved recovery of specific amount of heroin from the possession of the accused. P.W. 3 stated that the heroin was not measured at the place of occurrence. The prosecution witnesses did not say anything as to how they could ascertain that 35 grams of heroin was recovered from the possession of the accused. The heroin recovered from the possession of the accused was not measured by any witness. Because of the above observation, findings, reasoning and proposition, I am of the view that the trial court rightly convicted the appellant under section 19(1)(Ka) of the মাদক দ্রব্য নিয়ন্ত্রণ আইন, ১৯৯০. In the absence of recovery of specific amount of heroin, the minimum sentence is required to be passed against the accused as provided in Section 19(1)(Ka).

Considering the gravity of the offence, I am of the view that the ends of justice would be best served if the sentence of imprisonment passed by the trial court is modified. The appellant Md. Taimur Rahman is sentenced to suffer imprisonment already undergone.

In the result, the appeal is disposed of with a modification of the sentence.

Send down the L.C.R. at once.

(MD. SHOHROWARDI J.)